

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 682

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO TERMINATION OF PARENT AND CHILD RELATIONSHIPS; AMENDING SECTION 16-2005, IDAHO CODE, TO REVISE PROVISIONS REGARDING CONDITIONS UNDER WHICH TERMINATION MAY BE GRANTED; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-2005, Idaho Code, be, and the same is hereby amended to read as follows:

16-2005. CONDITIONS UNDER WHICH TERMINATION MAY BE GRANTED.

(1) (a) The court may grant an order terminating the relationship where it finds that termination of parental rights is in the best interests of the child and that one (1) or more of the following conditions exist:

(i) The parent has abandoned the child;

(ii) The parent has neglected or abused the child;

(iii) The presumptive parent is not the biological parent of the child;

(iv) The parent is unable to discharge parental responsibilities and such inability will continue for a prolonged indeterminate period and will be injurious to the health, morals or well-being of the child; or

(v) The parent has been incarcerated and is likely to remain incarcerated for a substantial period of time during the child's minority.

(b) For terminations arising from a case filed pursuant to chapter 16, title 16, Idaho Code, additional factors that inform what is in the best interest of the child, beyond those otherwise identified by the courts, include:

(i) The parent's efforts to improve the parent's capacity to safely reunify with the child;

(ii) The parent's demonstrated ability to live a law-abiding life, excepting infraction violations; and

(iii) When the child has formed a strong and positive bond with the child's substitute caretaker, the strong and positive bond has existed for a substantial portion of the child's life, the removal of the child from the substitute caretaker would likely cause serious psychological harm to the child, and the parent lacks the capacity to meet the needs of the child upon removal.

(2) The court may grant an order terminating the relationship and may rebuttably presume that such termination of parental rights is in the best interests of the child where:

(a) The parent caused the child to be conceived as a result of rape, incest, lewd conduct with a minor child under the age of sixteen (16)

years, or sexual abuse of a child under the age of sixteen (16) years, as defined in sections 18-6101, 18-1508, 18-1506, and 18-6601, Idaho Code;

(b) The following circumstances are present:

(i) Abandonment, chronic abuse or chronic neglect of the child. Chronic neglect or chronic abuse of a child shall consist of abuse or neglect that is so extreme or repetitious as to indicate continuing the relationship would result in unacceptable risk to the health and welfare of the child;

(ii) Sexual abuse against a child of the parent, or a conviction of sexual abuse against any child. Sexual abuse, for the purposes of this section, includes any conduct described in section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101, or 18-6604, Idaho Code;

(iii) Torture of a child; any conduct described in the code sections listed in section 18-8303(1), Idaho Code; battery or an injury to a child that results in serious or great bodily injury to a child; voluntary manslaughter of a child, or aiding or abetting such voluntary manslaughter, soliciting such voluntary manslaughter or attempting or conspiring to commit such voluntary manslaughter;

(iv) The parent has committed murder, aided or abetted a murder, solicited a murder or attempted or conspired to commit murder; or

(c) The court determines the child to be an abandoned infant, except in a parental termination action brought by one (1) parent against another parent.

(3) The court shall not grant an order terminating the relationship based on the child's immunization status.

(4) The court may grant an order terminating the relationship if termination is found to be in the best interest of the parent and child.

(5) The court may grant an order terminating the relationship where a consent to termination in the manner and form prescribed by this chapter has been filed by the parent or parents of the child in conjunction with a petition for adoption initiated by the person or persons proposing to adopt the child, where the consent to termination has been filed by a licensed adoption agency, or where the termination is initiated by the department pertaining to a child who is in the legal custody of the department, and no subsequent hearing on the merits of the petition shall be held. Consents required by this chapter must be witnessed by a district judge or magistrate of a district court, or equivalent judicial officer of the state, where a person consenting resides or is present, whether within or without the county, and shall be substantially in the following form:

IN THE DISTRICT COURT OF THE.... JUDICIAL DISTRICT OF THE STATE OF IDAHO, IN  
AND FOR THE COUNTY OF....

In the matter of the termination )  
of the parental rights of )

..... )  
..... )

I (we), the undersigned, being the.... of...., do hereby give my (our)  
full and free consent to the complete and absolute termination of my (our)

parental right(s), to the said...., who was born....,...., unto...., hereby relinquishing completely and forever, all legal rights, privileges, duties and obligations, including all rights of inheritance to and from the said...., and I (we) do hereby expressly waive my (our) right(s) to hearing on the petition to terminate my (our) parental relationship with the said...., and respectfully request the petition be granted.

DATED: . . . . , 20..

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STATE OF IDAHO           )  
                               ) ss.  
COUNTY OF . . . . )

On this.... day of...., 20.., before me, the undersigned.....  
(Judge or Magistrate) of the District Court of the.... Judicial District of  
the state of Idaho, in and for the county of...., personally appeared....,  
known to me (or proved to me on the oath of....) to be the person(s) whose  
name(s) is (are) subscribed to the within instrument, and acknowledged to me  
that he (she, they) executed the same.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year in this certificate first above written.

..... (District Judge or Magistrate)

(6) The court shall accept a consent or a surrender and release executed in another state if:

(a) It is witnessed by a magistrate or district judge of the state where signed; or

(b) The court receives an affidavit or a certificate from a court of comparable jurisdiction stating that the consent or the surrender and release was executed in accordance with the laws of the state in which it was executed, or the court is satisfied by other showing that the consent or surrender and release was executed in accordance with the laws of the state in which it was executed.

(7) The court shall accept a termination or relinquishment from a sister state that has been ordered by a court of competent jurisdiction under like proceedings or in any other manner authorized by the laws of a sister state. In a state where the father has failed to file notice of claim to paternity and willingness to assume responsibility as provided for pursuant to the laws of such state, and where such failure constitutes an abandonment of such child and constitutes a termination or relinquishment of the rights of the putative father, the court shall accept such failure as a termination in this state without further hearing on the merits if the court is satisfied that such failure constitutes a termination or relinquishment of parental rights pursuant to the laws of that state.

(8) The court shall hold a hearing unless:

(a) A consent to termination signed by the parent or parents of the child has been filed by an adoption agency licensed in the state of Idaho;

(b) A consent to termination was filed in conjunction with a petition for adoption of the child; or

1 (c) A consent to termination signed by the parent or parents of the  
2 child has been filed and the termination is initiated by the department  
3 pertaining to a child who is in legal custody of the department.

4 (9) If the parent has a disability, as defined in this chapter, the par-  
5 ent shall have the right to provide evidence to the court regarding the man-  
6 ner in which the use of adaptive equipment or supportive services will enable  
7 the parent to carry out the responsibilities of parenting the child. Nothing  
8 in this section shall be construed to create any new or additional obligation  
9 on state or local governments to purchase or provide adaptive equipment or  
10 supportive services for parents with disabilities.

11 SECTION 2. An emergency existing therefor, which emergency is hereby  
12 declared to exist, this act shall be in full force and effect on and after  
13 July 1, 2026.